

Senate File 610

S-3095

1 Amend Senate File 610 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 DEFINITIONS — LICENSE AUTHORIZATIONS — BOND REQUIREMENTS

6 Section 1. Section 123.3, subsections 10 and 32, Code 2025,
7 are amended to read as follows:

8 10. "*Canned cocktail*" means a mixed drink or cocktail, the
9 alcohol component of which is primarily composed of alcoholic
10 liquor, that is premixed and packaged in a metal can and
11 contains more than one-half of one percent of alcohol by volume
12 but not more than fifteen percent of alcohol by volume. A
13 mixed drink or cocktail mixed and packaged in a metal can
14 pursuant to [section 123.49, subsection 2](#), paragraph "d",
15 subparagraph (3), shall not be considered a canned cocktail.

16 32. "*Mixed drink or cocktail*" means an alcoholic beverage,
17 composed in whole or in part of alcoholic liquor, wine, or
18 beer, that is combined with other alcoholic beverages or
19 nonalcoholic beverages or ingredients including but not limited
20 to ice, water, soft drinks, or flavorings.

21 Sec. 2. Section 123.30, subsection 1, paragraph a, Code
22 2025, is amended to read as follows:

23 a. A retail alcohol license may be issued to any person
24 who is of good moral character as defined by [this chapter](#), the
25 state of Iowa, or any state agency as defined in section 669.2.

26 Sec. 3. Section 123.30, subsection 3, paragraph b,
27 subparagraph (2), subparagraph division (c), Code 2025, is
28 amended to read as follows:

29 (c) The holder of a special class "C" retail alcohol
30 license shall be authorized to sell wine and beer to patrons
31 by the individual drink for consumption on the premises only.
32 However, wine and beer in original unopened containers may
33 also be sold for consumption off the premises. In addition, a
34 mixed drink or cocktail that does not contain alcoholic liquor
35 may be sold for consumption off the premises subject to the

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1 requirements of section 123.49, subsection 2, paragraph "d".

2 Sec. 4. Section 123.30, subsection 4, Code 2025, is amended
3 to read as follows:

4 4. Notwithstanding any provision of **this chapter** to the
5 contrary, a person holding a retail alcohol license to sell
6 alcoholic beverages for consumption on the licensed premises
7 may permit a customer to remove one unsealed bottle of wine
8 for consumption off the premises if the customer has purchased
9 and consumed a portion of the bottle of wine on the licensed
10 premises. The licensee or the licensee's agent shall securely
11 reseal such bottle in a bag designed so that it is visibly
12 apparent that the resealed bottle of wine has not been tampered
13 with and provide a dated receipt for the resealed bottle of
14 wine to the customer. A wine bottle resealed pursuant to the
15 requirements of **this subsection** is subject to the requirements
16 of **sections 321.284 and 321.284A**. ~~A person holding a retail~~
17 ~~alcohol license to sell alcoholic beverages for consumption on~~
18 ~~the licensed premises may permit a customer to carry an open~~
19 ~~container of wine from the person's licensed premises into~~
20 ~~another immediately adjacent licensed premises that is covered~~
21 ~~by a license or permit that authorizes the consumption of wine,~~
22 ~~a temporarily closed public right-of-way, or a private place.~~

23 Sec. 5. Section 123.30, Code 2025, is amended by adding the
24 following new subsection:

25 NEW SUBSECTION. 5. *a.* Notwithstanding any provision of
26 this chapter to the contrary, a person holding a retail alcohol
27 license to sell alcoholic beverages for consumption on the
28 licensed premises may permit a customer to carry an alcoholic
29 beverage in an open container from the licensed premises to any
30 of the following immediately adjacent locations:

31 (1) A licensed premises authorized to sell the same type of
32 alcoholic beverage for consumption on the licensed premises.

33 (2) A temporarily closed public right-of-way.

34 (3) A private place.

35 *b.* The licensee of the immediately adjacent licensed

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1 premises, or owner of the immediately adjacent private
2 place, may refuse to allow the customer to enter the licensed
3 premises or private place with an alcoholic beverage in an open
4 container.

5 Sec. 6. Section 123.31, subsection 2, paragraphs b and c,
6 Code 2025, are amended to read as follows:

7 b. That the applicant is a person of good moral character
8 as provided in [section 123.3, subsection 40](#). This paragraph
9 does not apply if the applicant is the state of Iowa or a state
10 agency as defined in section 669.2.

11 c. That the applicant is a citizen of the state of Iowa
12 or, if a corporation, that the applicant is authorized to do
13 business in the state. This paragraph does not apply if the
14 applicant is the state of Iowa or a state agency as defined in
15 section 669.2.

16 Sec. 7. Section 123.31C, subsection 1, Code 2025, is amended
17 to read as follows:

18 1. A person holding a special class "C" retail native
19 wine license may sell beer and native wine only at retail for
20 consumption on or off the premises. Sales of beer and native
21 wine for consumption off the premises made pursuant to this
22 section shall be made in original containers except as provided
23 in [subsection 5](#). A sale of a mixed drink or cocktail that does
24 not contain alcoholic liquor may be sold for consumption off
25 the premises subject to the requirements of section 123.49,
26 subsection 2, paragraph "d".

27 Sec. 8. Section 123.43, subsection 2, paragraphs b and c,
28 Code 2025, are amended to read as follows:

29 b. That the applicant is a person of good moral character
30 as provided in [section 123.3, subsection 40](#). This paragraph
31 does not apply if the applicant is the state of Iowa or a state
32 agency as defined in section 669.2.

33 c. That the applicant is a citizen of the state of Iowa
34 or, if a corporation, that the applicant is authorized to do
35 business in the state. This paragraph does not apply if the

1 applicant is the state of Iowa or a state agency as defined in
2 section 669.2.

3 Sec. 9. Section 123.43, Code 2025, is amended by adding the
4 following new subsection:

5 NEW SUBSECTION. 5. For purposes of this section,
6 "premises", in addition to premises as defined in section 123.3,
7 may include any of the following noncontiguous locations,
8 provided that such noncontiguous locations are approved by the
9 alcohol and tobacco tax and trade bureau of the United States
10 department of the treasury:

11 a. Any number of locations which are only separated from
12 the premises as defined in section 123.3 by public waterways,
13 roads, or carrier rights-of-way.

14 b. Any number of locations in the same general location as
15 the premises as defined in section 123.3.

16 c. An additional warehouse or warehouses, located somewhere
17 other than on the premises as defined in section 123.3 or a
18 location described in paragraph "a" or "b".

19 Sec. 10. Section 123.49, subsection 2, paragraph d,
20 subparagraphs (2), (3), and (4), Code 2025, are amended to read
21 as follows:

22 (2) Mixed drinks or cocktails mixed on the premises that are
23 not for immediate consumption may be consumed on the licensed
24 premises subject to the requirements of this subparagraph
25 ~~pursuant to rules adopted by the department.~~ as follows:

26 (a) ~~The rules shall provide that the mixed drinks or~~
27 ~~cocktails shall be stored, for no longer than seventy-two~~
28 ~~hours, in the shortest period outlined in the minimum standards~~
29 ~~of the specific ingredients of the mixed drink or cocktail~~
30 ~~in the rules established by the department of inspections,~~
31 ~~appeals, and licensing to protect consumers from foodborne~~
32 ~~illness as described in section 137F.2. A licensee who mixes,~~
33 ~~stores, and allows the consumption of mixed drinks or cocktails~~
34 ~~that are not for immediate consumption shall comply with all~~
35 applicable state and federal food safety laws and regulations.

1 **(b) A mixed drink or cocktail that is not for immediate**
2 **consumption shall be mixed, stored, and dispensed on the**
3 **licensed premises from a labeled container in a quantity**
4 **that does not exceed three gallons. ~~The rules shall also~~**
5 **~~provide that~~ A mixed drink or cocktail, or portion thereof,**
6 **not consumed within the time frame outlined in subparagraph**
7 **division (a) is considered expired and must be destroyed. An**
8 **expired mixed drink or cocktail shall not be added to an empty**
9 **container and relabeled or added to another mixed drink or**
10 **cocktail.**

11 **(i) A mixed drink or cocktail that is not for immediate**
12 **consumption shall at all times be in a container compliant with**
13 **applicable state and federal food safety laws and regulations.**
14 **The mixed drink or cocktail shall be mixed and remain stored**
15 **in the same container. The mixed drink or cocktail shall be**
16 **removed from the stored container to compound and fulfill a**
17 **mixed drink or cocktail order upon receipt of the order for**
18 **the mixed drink or cocktail or for transfer into a pourable**
19 **container. The pourable container shall have affixed a label**
20 **compliant with subparagraph subdivision (ii) displaying label**
21 **information identical to that on the container from which the**
22 **contents were poured. The expiration date and time shall not**
23 **be extended by the transfer of product to a pourable container.**
24 **The mixed drink or cocktail may be strained into another**
25 **container when the mixed drink or cocktail is returned without**
26 **delay to the labeled container from which it was strained and**
27 **the container and process are compliant with applicable state**
28 **and federal food safety laws and regulations. An original**
29 **container of alcoholic liquor or an original container of wine**
30 **shall not be used to mix, store, or dispense a mixed drink or**
31 **cocktail. The mixed drink or cocktail shall not be mixed,**
32 **stored, or dispensed from a container bearing an alcoholic**
33 **beverage name brand. A dispensing machine which contains a**
34 **mixed drink or cocktail is subject to the requirements and**
35 **restrictions of this subparagraph (2).**

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1 (ii) A label must be placed on a container when the contents
2 of the mixed drink or cocktail are placed into the empty
3 container. The label shall be affixed to the container in a
4 conspicuous place. The label must legibly identify the month,
5 day, year, and time the contents are placed into the empty
6 container. The label must legibly identify the month, day,
7 year, and time the contents expire. The label must legibly
8 specify the title of the recipe used for the contents of the
9 container. The label must legibly identify the person who
10 prepared the contents of the container. The label must legibly
11 identify the size of the batch within the container and be
12 conspicuously marked with the words "CONTAINS ALCOHOL". The
13 label shall be removed from the container once the entire
14 contents have been consumed, transferred to a pourable
15 container, or destroyed and disposed of in accordance with
16 applicable law. A label shall not be reused, and a removed
17 label shall not be reapplied to a container. A new label shall
18 be placed on the container for each prepared batch of mixed
19 drinks or cocktails that is not for immediate consumption.

20 (iii) A mixed drink or cocktail that is not for immediate
21 consumption shall not include added flavors and other
22 nonbeverage ingredients included in the mixed drinks or
23 cocktails shall not include containing hallucinogenic
24 substances or added caffeine or other added stimulants
25 including but not limited to guarana, ginseng, and taurine.
26 The rules shall also require that the A licensee is limited to
27 utilizing alcoholic beverages in the mixed drink or cocktail
28 that are authorized by the retail alcohol license and obtained
29 as prescribed by this chapter.

30 (iv) The licensee shall keep records as to when the contents
31 in each prepared batch of mixed drinks or cocktails are mixed
32 in a particular container were mixed and the recipe used for
33 that mixture. The records must include the month, day, year,
34 and time the contents are placed into the empty container,
35 each alcoholic beverage, including the brand and the amount

1 utilizing the metric system, and each nonalcoholic ingredient
2 placed in the container. The recipe must contain the title
3 and directions for preparing the contents, the identity of the
4 person who prepared the contents of the container, and the
5 size of the batch. The records must include the month, day,
6 year, and time the contents of the container are destroyed
7 and disposed of, the identity of the person who destroyed
8 and disposed of the contents, and the method of destruction
9 and disposal, or a statement that the contents were entirely
10 consumed. Records shall be maintained on the licensed premises
11 for a period of three years and shall be open to inspection
12 pursuant to section 123.33.

13 (c) In addition, mixed drinks or cocktails mixed on the
14 premises pursuant to this subparagraph (2) may be sold for
15 consumption off the licensed premises as provided in and
16 subject to the requirements of subparagraph (3).

17 (3) Mixed drinks or cocktails mixed on premises covered by
18 a class "C" or special class "C" retail alcohol license, or a
19 special class "C" retail native wine license, for consumption
20 off the licensed premises may be sold if the mixed drink or
21 cocktail is immediately filled in a sealed container and is
22 promptly taken from the licensed premises prior to consumption
23 of the mixed drink or cocktail. A mixed drink or cocktail
24 that is sold in a sealed container in compliance with the
25 requirements of this subparagraph and rules adopted by the
26 department shall not be deemed an open container subject to the
27 requirements of [sections 321.284](#) and [321.284A](#) if the sealed
28 container is unopened and the seal has not been tampered with,
29 and the contents of the container have not been partially
30 removed.

31 (4) For purposes of this paragraph:

32 (a) "Immediate consumption" means the compounding and
33 fulfillment of a mixed drink or cocktail order upon receipt of
34 the order for the mixed drink or cocktail.

35 {a} (b) "Sealed container" means a vessel containing a

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1 mixed drink or cocktail that is designed to prevent consumption
2 without removal of a tamper-evident lid, cap, or seal. *"Sealed
3 container"* does not include a container with a sipping hole
4 or other opening for a straw, a cup made of plastic that
5 is intended for one-time use, or a cup made of paper or
6 polystyrene foam.

7 ~~(b)~~ (c) *"Tamper-evident"* means a lid, cap, or seal that
8 visibly demonstrates when a container has been opened.

9 Sec. 11. Section 123.127, subsection 2, paragraphs b and c,
10 Code 2025, are amended to read as follows:

11 b. That the applicant is a person of good moral character
12 as provided in [section 123.3, subsection 40](#). This paragraph
13 does not apply if the applicant is the state of Iowa or a state
14 agency as defined in section 669.2.

15 c. That the applicant is a citizen of the state of Iowa
16 or, if a corporation, that the applicant is authorized to do
17 business in the state. This paragraph does not apply if the
18 applicant is the state of Iowa or a state agency as defined in
19 section 669.2.

20 Sec. 12. Section 123.127, subsection 2, paragraph g, Code
21 2025, is amended by striking the paragraph.

22 Sec. 13. Section 123.175, subsection 2, paragraphs b and c,
23 Code 2025, are amended to read as follows:

24 b. That the applicant is a person of good moral character
25 as provided in [section 123.3, subsection 40](#). This paragraph
26 does not apply if the applicant is the state of Iowa or a state
27 agency as defined in section 669.2.

28 c. That the applicant is a citizen of the state of Iowa
29 or, if a corporation, that the applicant is authorized to do
30 business in the state. This paragraph does not apply if the
31 applicant is the state of Iowa or a state agency as defined in
32 section 669.2.

33 Sec. 14. Section 123.175, subsection 2, paragraph g, Code
34 2025, is amended by striking the paragraph.

35 Sec. 15. EFFECTIVE DATE. This division of this Act, being

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1 deemed of immediate importance, takes effect upon enactment.

2 DIVISION II

3 LICENSE FEE DETERMINATION

4 Sec. 16. Section 123.36, subsection 1, paragraph a,
5 subparagraph (4), Code 2025, is amended to read as follows:

6 (4) For premises located outside the corporate limits of
7 any city, a fee equal to that charged ~~to~~ for a premises with
8 of the same square footage in the nearest incorporated city
9 ~~located nearest the premises to be licensed, as determined by~~
10 the address assigned by the United States postal service. ~~If~~
11 ~~there is doubt as to which of two or more differing corporate~~
12 ~~limits is the nearest, the license fee which is the largest~~
13 ~~shall prevail. However, if the premises is located in an~~
14 ~~unincorporated town, for purposes of this paragraph, the~~
15 ~~unincorporated town shall be treated as if it is a city.~~

16 Sec. 17. Section 123.36, subsection 1, paragraph c,
17 subparagraph (4), Code 2025, is amended to read as follows:

18 (4) Commercial establishments located outside the corporate
19 limits of any city, a fee equal to that charged in the
20 incorporated city located nearest the premises to be licensed,
21 ~~and in case there is doubt as to which of two or more differing~~
22 ~~corporate limits is the nearest, the license fee which is the~~
23 ~~largest shall prevail~~ as determined by the address assigned by
24 the United States postal service. ~~However, if a commercial~~
25 ~~establishment is located in an unincorporated town, for~~
26 ~~purposes of this paragraph, the unincorporated town shall be~~
27 ~~treated as if it is a city.~~

28 Sec. 18. Section 123.36, subsection 1, paragraph d,
29 subparagraph (4), Code 2025, is amended to read as follows:

30 (4) Commercial establishments located outside the corporate
31 limits of any city, a fee equal to that charged in the
32 incorporated city located nearest the premises to be licensed,
33 ~~and in case there is doubt as to which of two or more differing~~
34 ~~corporate limits is the nearest, the license fee which is the~~
35 ~~largest shall prevail~~ as determined by the address assigned by

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1 the United States postal service. ~~However, if a commercial~~
2 ~~establishment is located in an unincorporated town, for~~
3 ~~purposes of this paragraph, the unincorporated town shall be~~
4 ~~treated as if it is a city.~~

5 Sec. 19. Section 123.36, subsection 1, paragraph g,
6 subparagraph (4), Code 2025, is amended to read as follows:

7 (4) For premises located outside the corporate limits of
8 any city, a fee equal to that charged to for a premises with
9 of the same square footage in the nearest incorporated city
10 ~~located nearest the premises to be licensed, as determined by~~
11 the address assigned by the United States postal service. ~~If~~
12 ~~there is doubt as to which of two or more differing corporate~~
13 ~~limits is the nearest, the license fee which is the largest~~
14 ~~shall prevail. However, if the premises is located in an~~
15 ~~unincorporated town, for purposes of this paragraph, the~~
16 ~~unincorporated town shall be treated as if it is a city.~~

17 Sec. 20. APPLICABILITY. This division of this Act applies
18 to licenses issued or renewed on or after November 10, 2025.
19 A license issued prior to that date and in effect on that date
20 shall continue in full force and effect with the authority
21 originally granted by the license until expiration or renewal.>

22 2. Title page, by striking lines 1 through 3 and inserting
23 <An Act relating to alcoholic beverages, including license
24 authorizations, bond requirements, and fee determinations, and
25 including effective date and applicability provisions.>

DAVID D. ROWLEY